

TENTATIVE RULING

Case: **In re McLemore Virgil**
 Case No. PR2025-0166

Hearing Date: **September 1, 2026** **Department Fourteen** **9:00 a.m.**

Respondent Sandra R. Gordon's motion to compel answers to form and special interrogatories and requests for production, for an order that the truth of all matters specified in the requests for admissions be deemed admitted, for sanctions, including reasonable attorney's fees is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b), 2033.280, subd. (b).) Respondent failed to serve the motion electronically on petitioner Marcel Myres' counsel as required. (Code Civ. Proc., § 1010.6, subd. (i); Cal. Rules of Court, rule 2.251(c); YCR 7.2.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Lai v. ZK Sacramento Properties, LLC et al.**
Case No. CV2025-1043

Hearing Date: **September 1, 2026** **Department Thirteen** **9:00 a.m.**

On its own motion, the Court **STRIKES** Kwong Lai aka Bosco Lai's opposition (filed June 22, 2026) and the declaration of Kwong Lai (filed June 22, 2026) because Kwong Lai is not an attorney and therefore, may not participate in this action on behalf of Raising Green Properties, Inc. (See Code Civ. Proc., § 128, subd. (a)(8); Bus. & Prof. Code, § 6125; Corp. Code, § 2010; *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 ["...a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney"]; *Vann v. Shilleh* (1975) 54 Cal.App.3d 192, 199.)

Defendants ZK Sacramento Properties, LLC, Travis Monson, and The Vollman Company, Inc.'s motion for sanctions is **DENIED**. (Code Civ. Proc., § 128.7.) First, although defendants sent plaintiff this motion before filing it, defendants did not include a notice of motion reflecting when the motion would be heard. (*J.N. v. Goldberg* (2026) 120 Cal.App.5th 544, 549-550 ["a notice of motion seeking section 128.7 sanctions must reflect when the motion will be heard"]; Code Civ. Proc., §§ 128.7, subd. (c)(1), 1010; Lopez decl., ¶ 17, Exhibits J & K.) Second, defendants' motion does not track statute and therefore, the Court finds that defendants have failed to demonstrate how plaintiff violated section 128.7 such that sanctions are warranted. (See Code Civ. Proc., § 128.7, subds. (b), (d), & (e).) Finally, in the reply, defendants also request sanctions against attorney Tianwen Xu. (See Reply, p. 8.) But such a request is improper because it was made for the first time in the reply. (See *Prince v. United National Ins. Co.* (2006) 142 Cal.App.4th 233, 238.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.